

CITATION: Wettlaufer v. K2D2 Investments Inc., 2018 ONSC 408
COURT FILE NO.: C-1012-13
DATE: 2018-01-19

SUPERIOR COURT OF JUSTICE – ONTARIO

RE: CLARE WETTTLAUFER and BRENDA WETTTLAUFER, Plaintiffs

AND:

K2D2 INVESTMENTS INC., F.W. ROGERS ENTERPRISES INC.
2072730 ONTARIO INC. and 2073070 ONTARIO INC., Defendants

BEFORE: The Honourable Mr. Justice C.S. Glithero

COUNSEL: C. McIntosh, for the Defendant, F.W. Rogers Enterprises Inc., Moving Party
S. Coons, for K2D2 Investments Inc., Responding Party

HEARD: January 16, 2018

RULING ON MOTION FOR SUMMARY JUDGMENT

[1] The defendant, F.W. Rogers Enterprises Inc. (“Rogers”) moves for summary judgment dismissing all claims and crossclaims as against it.

[2] Other than the defendant, K2D2 Investments Inc. (“K2D2”), the other parties to the action have apparently resolved their issues with Rogers and do not oppose the motion. Accordingly, this motion concerns only Rogers and K2D2.

[3] The action is for damages allegedly sustained as a result of a slip and fall occurring on December 17, 2011 in the parking lot of a small plaza in New Hamburg, Ontario. Mr.

Wettlaufer claims to have fallen and injured himself when he slipped on a patch of black ice in the parking lot, while crossing it on his way to an auto supply store.

[4] K2D2 was the owner of the plaza premises. Rogers was an asphalt sealing and repair company retained by K2D2 to perform asphalt patching and sealing in the parking lot where the injuries occurred.

[5] Both K2D2 and Rogers defended the main action and crossclaimed as against each other. Both of these defendants issued jury notices.

[6] It appears from the motion record that the north side of the plaza parking lot was occupied by various businesses, one of which was the auto parts store to which the plaintiff was in the process of going at the time of his fall. The south side of the parking lot is occupied by a number of parking spots intended for the use of those going to the businesses. It seems to be common ground that the asphalt parking lot surface slopes downwards from the north edge where the store fronts are located towards the middle of the parking lot, and that similarly the asphalt slopes from the south edge of the parking lot, where the parking spots are located, again towards the middle.

[7] Similarly, it appears that from both the east and west ends of the parking lot, the asphalt slopes downwards towards the middle. There is a catch basin located at the bottom of the slopes from the four directions.

[8] Mr. Wettlaufer has little recollection of what happened.

[9] Mr. Ramseyer, who drove Mr. Wettlaufer to the plaza, indicates that after parking, Mr. Wettlaufer got out of the car on the passenger side and slipped and fell heavily. Mr. Ramseyer says the fall occurred approximately 10' from the passenger door of the vehicle near the catch basin where Mr. Wettlaufer slipped on a patch of black ice that was approximately 3' across and was on pavement sloping downwards towards the center of the parking lot. He did not see any other patches of ice in the parking lot.

[10] Jeffrey O'Neil was driving by and observed the fall and went to the scene. He says that Mr. Wettlaufer slipped and fell within one or two steps of leaving the vehicle. Mr. O'Neil indicated the place where Mr. Wettlaufer fell was coated with ice and that the parking lot slopes down towards the middle.

[11] An engineer retained on behalf of the plaintiff concluded the fall was a result of a lack of salting or sanding of the parking lot.

[12] Another engineering firm was retained on behalf of K2D2. The evidence of Mr. Brownlee, the engineer on this case, is that typical slopes for parking lots are 2% so as to channel precipitation away. He found the slope of the pavement from north to south and vice versa to be in the range of 4 - 8% which would have served to drain water away from both the front of the buildings and the parking spaces. Similarly, the pavement sloped from both the east and the west downwards towards the catch basin. He also observed an area of asphalt patching just to the west of the catch basin which was approximately 2 metres long, and because of the fact that it was a patch, had less than a 2% slope towards the drain. There was also an area where the patched pavement surface sloped away from the catch basin and hence in that expert's opinion would prevent surface water from continuing to flow to the catch basin. The result was that in

the localized area there was increased potential for the pooling of either rain or melted ice or snow which could then freeze. This engineer opined that the asphalt patching had resulted in a lack of positive drainage in that localized patched area which then allowed the pooling of precipitation and the freezing. The asphalt repairs left a surface not consistent with the original pavement slopes and failed to maintain proper drainage to the catch basin.

[13] Rogers was the company that performed the asphalt patches in both August of 2010 and July of 2011. On discovery, the representative of Rogers testified that when doing asphalt repairs he does not do any grading or use a level but rather checks by eye to determine whether or not repairs are satisfactory. He made no efforts to measure the slope resulting from his patching efforts.

Position of the Moving Party

[14] Rogers submits that K2D2 has no chance of success in its crossclaim as against Rogers, that there is no issue requiring a trial, and that summary judgment should issue. Rogers submits that there is no precise evidence as to exactly where the plaintiff fell, and so it can't be said that the fall occurred on ice which resulted from the patching work of Rogers. By way of answer to this, it should be noted that it seems to be common ground that after getting out of the parked car, although it is not known exactly which spot the car was parked in, the plaintiff was on his way to the auto parts store, the front door of which is immediately opposite the catch basin referred to earlier. It would also appear that the only patch of ice identified by anyone is that patch of ice where the plaintiff fell and according to the witness Ramseyer that patch of ice was near the catch basin.

[15] Rogers also relies on the evidence of Holly Bast, who was employed by K2D2 and was at the plaza working each day. Her evidence is expected to be that she saw nothing wrong with the patching job done by Rogers and no signs of any dangerous conditions in the parking lot. Of course, it is to be observed that such evidence is in keeping with the best interests of her employer, and the evidence also indicates that she is married to one of the owners of K2D2.

[16] Rogers also relies on the evidence of the report of the plaintiff's expert, Mr. Caskanette, to the effect that the accident occurred as a result of the lack of salting. In his report he does not appear to have addressed any drainage issue. Rogers' submission is that regardless of any possible shortcoming in the asphalt paving, liability rests entirely with the failure to salt or otherwise de-ice the parking lot.

Position of K2D2

[17] K2D2 submits that the best evidence is that the plaintiff slipped on ice beside the catchment basin. K2D2 relies on the evidence of the expert engineer, Russell Brownlee relating to the pooling in the location to the west of the catch basin where the asphalt patching reduced the slope, or reversed it, so as to prevent proper drainage and led to the subsequent freezing of the pooled water. It further takes the position that, but for the frozen pooled water, the accident would not have occurred. K2D2 submits that there is a genuine issue as to the liability of Rogers, which requires a trial. It points out that the engineer, Mr. Brownlee, was not cross-examined on the evidence provided from him on this motion.

Discussion

[18] As indicated in Rule 20.04, I am to grant summary judgment if I am satisfied that “there is no genuine issue requiring a trial”. Sub-rule (2.1) provides that in making that determination I am to consider the evidence presented by the parties, and that I *may* choose to weigh the evidence, evaluate the credibility of a deponent, and draw any reasonable inference from the evidence, unless I determine it to be in the interests of justice that such powers be exercised only at a trial.

[19] Under sub-rule (2.2) I have the discretion to order the presentation of oral evidence, and thereby conduct a mini-trial.

[20] In *Hryniak v. Mauldin*, 2014 SCC 7, the Supreme Court of Canada set out a “road map” for summary judgment motions. It dictates that the motion judge should first determine if there is a genuine issue requiring a trial, based only on the evidence, without resort to the new fact finding powers. That will be the case if the judge is able to “fairly and justly adjudicate the dispute and is a timely, affordable and proportionate procedure”.

[21] If there does appear to be a genuine issue requiring a trial, then the motion judge is to determine whether it can be avoided by using the new fact finding powers under sub-rules (2.1) and (2.2). The use of those powers is at the discretion of the motion judge. They are not to be used if it is against the interests of justice, which will be so if such use would not “lead to a fair and just result and will serve the goals of timeliness, affordability and proportionality in light of the litigation as a whole” (at para. 66). The purpose of Rule 20 is to avoid unnecessary trials, not to eliminate all trials.

[22] It is the obligation of the party moving for summary judgement to present a record upon which the motion judge can determine whether there is a genuine issue requiring a trial: *Combined Air Mechanical Services Inc. v. Flesch*, [2011] ONCA 764; *Grant Thornton Limited v. Carillion Construction Inc.*, 2016 ONSC 1354 at para. 11).

[23] *Combined Air* also indicated there were generally three types of cases amenable to summary judgment, which includes those where the parties so agreed, those where the claim or defence can be shown to be without merit in the sense of having no chance of success, or those where the trial process is not required to perform a final adjudication on the merits. Clearly, the first type of case does not apply here. In my opinion, the case presented by the moving party, Rogers, has not demonstrated that K2D2's claim against Rogers has no chance of success, nor is it shown that the trial process is not required.

[24] On the first step, in my opinion, the record does not allow me to make the necessary findings of fact in terms of exactly where the plaintiff slipped, whether it was an area which had been patched by Rogers, if the asphalt patching caused a pooling of water which then froze, and whether salting would have been a total answer to the problem. At least on the issue of liability, it seems to me that the court would have to hear from the various witnesses who either gave evidence on this motion or were in a position to have provided evidence in order to determine the facts surrounding the fall. I conclude that there is a genuine issue requiring a trial as to the liability of Rogers.

[23] As a second step, I am then to consider the additional fact finding powers provided for in rule 20.04 (2.1) permitting the weighing of evidence, the evaluation of the credibility of a

deponent and the drawing of any reasonable inferences from the evidence. Under (2.2) I may also order the hearing or oral evidence.

[24] As I previously mentioned, both of these parties filed jury notices. This raises the question of how, if at all, that is to be factored into the rule 20 procedure. The rule is silent as to this issue.

[25] In *Mitusev v. General Motors*, [2014] O.J. No. 4365 at para. 91, Justice Edwards observed:

“On a motion for summary judgment, while it is clear that the motion judge is required to determine whether there is no genuine issue for a trial – even in the face of a Jury Notice, where the motion judge is unable from the evidence filed to make findings of fact, and to thereafter apply the law, it seems to me that it would be the exceptional case that the motion judge would exercise the expanded fact finding allowed by rule 20.04(2.1) and (2.2) to effectively usurp the fact finding role of the jury”.

[26] I share that view. as I have already indicated, on the first required step, I am unable to make the findings of fact to which the law would be applied in order to determine this matter. I do not think this to be one of those cases where I ought to usurp the role of the jury, specifically requested by both of these parties, in determining credibility, weighing the evidence and drawing inferences. Both these parties elected to have their dispute tried by a jury. They should have the issue so decided.

[27] In my opinion there is clearly evidence, particularly in the form of the opinion of Mr. Brownlee, which if accepted could lead a properly instructed jury, acting reasonably, to find liability on the part of Rogers.

[28] For these reasons, the motion for summary judgment is dismissed.

Costs

[29] A cost outline on behalf of K2D2 claims costs of the motion on a partial indemnity basis in the amount of \$4,875.72, plus \$400 in counsel fee and disbursements in the amount of \$689.59, all inclusive of HST.

[30] The cost outline, on behalf of Rogers, outlines the costs claimed in respect of the entire action. In respect of the summary judgment motion, the claim on a partial indemnity basis is for fees in the amount of \$5,023.50, together with disbursements which appear to be, in relation to the motion, in the amount of \$1,078.80.

[31] In respect of K2D2, the hourly rates charged, and the claims for time spent appear reasonable to me having regard to the importance of and complexity of the issues. They are in line with the figures for Rogers.

[32] I fix costs in the amount of \$5,965.31, inclusive of fees, disbursements and applicable HST, payable by the applicant Rogers to the respondent K2D2 within 30 days.

Date: January 19, 2018

C.S. Glithero J.